

the factual issues in dispute and an opportunity to present the evidence relevant to the motion, the parties must submit separate statements of undisputed facts. *Id.* at 864; see Code Civ. Proc. § 437c(c) and CRC 3.1350(d).

The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that the party is entitled to judgment as a matter of law. *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; see CJER Civ. Proc. before Trial, § 13.60. There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. *Id.* A plaintiff bears the burden of persuasion that each element of the cause of action in question has been proved, and hence that there is no defense thereto. *Id.* A defendant bears the burden of persuasion that one or more elements of the cause of action in question cannot be established, or that there is a complete defense thereto. *Id.*

The party moving for summary judgment bears an initial burden of production to make a *prima facie* showing of the nonexistence of any triable issue of material fact; if the moving party carries its burden of production, the burden shifts to the opposing party who then has a burden of production to make a *prima facie* showing of the existence of a triable issue of material fact. *Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at 850.

Cause of Action: Breach of Contract

To establish a claim for breach of contract, a plaintiff must establish: (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damage to Plaintiff. *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.

In the instant matter, the court finds that the Plaintiff has met its burden.

Also, the court finds that Plaintiff's claims for attorney's fees and costs are reasonable.

Disposition

The Court finds and orders as follows:

- 1. The MSJ is Granted, in the principal amount of \$6,093.50; \$1,050 for attorney's fees; and \$824.90 for costs.**
2. Defense to prepare the order after hearing and serve a copy of the filed order on Defendant.

3. 9:00 AM CASE NUMBER: L24-04331
CASE NAME: JPMORGAN CHASE BANK N.A. VS. JOSEPH BARRATT
***HEARING ON MOTION IN RE: MOTION FOR JUDGMENT ON THE PLEADINGS**
FILED BY: JPMORGAN CHASE BANK N.A.
***TENTATIVE RULING**

Plaintiff filed a Motion for Judgment on the Pleadings. The motion was timely served by mail on the address for Defendant provided in the Answer. The Motion is unopposed.

Background

On 3/25/25, the court granted Plaintiff's Motion to deem matters true those requested in Plaintiff's Request for Admissions. All requests for admission, provided in the motion filed 11/15/24, were deemed to be true by the court.

The court takes judicial notice of the Complaint, the court minutes reflecting the Order on the Motion to deem matters admitted, as well as the motion filed by Plaintiff on 11/15/24.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) ("Rutter Civ. Pro.") § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party's admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff's Complaint alleges Common Counts as the cause of action, based on the allegation that Defendant became indebted in the amount of 8,536.02, on a credit card account.

Defendant's Answer denies the allegations of the Complaint and states various affirmative defenses.

Later, Plaintiff filed a motion to deem the truth of matters admitted in a set of Request for Admissions (the "RFAs") served on Defendant which was granted by the Court. See

Minutes from 3/25/25 (the “Deemed Admitted Order”). The Court takes judicial notice of the Deemed Admitted Order and the underlying court filings in connection with the Deemed Admitted Order.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of the subject debt and the amount owing, \$8,536.02.

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 (“Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.”).

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. Plaintiff shall file Order.

4. 9:00 AM CASE NUMBER: L24-10399
CASE NAME: DISCOVER BANK VS. LUIS MUNOZ SARABIA
HEARING IN RE: MOTION TO ENTER JUDGMENT PURSUANT TO STIPULATION, MEMORANDUM OF POINTS AND AUTHORITIES AND DECLARATION OF COUNSEL FOR PLAINTIFF AND ITS ACCOMPANYING EXHIBITS
FILED BY:

TENTATIVE RULING:

Plaintiff filed this Motion on 2/5/26, which was originally scheduled to be heard on 5/19/26. However, on that day, this court found that Plaintiff failed to properly notify the Defendant, and continued the matter to 8/18/26, 9am. This court ordered Plaintiff to properly notify the Defendant.

Apparently, nothing has been done in that respect.

Disposition

This matter will be dropped.

5. 9:00 AM CASE NUMBER: L25-00293
CASE NAME: CROWN ASSET MANAGEMENT, LLC VS. HAROLD MOSES
***HEARING ON MOTION IN RE: TO VACATE DEFAULT JUDGMENT**
FILED BY: CROWN ASSET MANAGEMENT, LLC

TENTATIVE RULING:

Plaintiff filed a Motion to set aside the default judgment, contending that Defendant was not properly served with notice of process, under Section 473 of the CCP.